

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF WAYNE
THIRD JUDICIAL CIRCUIT, FAMILY DIVISION

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff/Counter-Defendant,

Case No. 26-104594-DO
Hon. Nicole N. Goodson

v.

CONRAD ALAN ROCKENHAUS,
Defendant/Counter-Plaintiff.

**DEFENDANT/COUNTER-PLAINTIFF'S MOTION FOR DEFAULT JUDGMENT ON
COUNTERCLAIM**

NOW COMES Defendant/Counter-Plaintiff Conrad Alan Rockenhaus, appearing pro se, and respectfully moves this Honorable Court for entry of default judgment in his favor on the Counterclaim served and filed April 15, 2026, pursuant to MCR 2.603(B)(3), on the deemed-admitted record produced by Counter-Defendant's failure to plead within the period prescribed by MCR 2.108(A)(4). In support, Defendant/Counter-Plaintiff states as follows.

LCR 2.119(B) COMPLIANCE

1. The undersigned hereby certifies, pursuant to LCR 2.119(B)(1), that he has complied with all provisions of LCR 2.119(B) on motion practice. Specifically, and pursuant to LCR 2.119(B)(2), undersigned requested concurrence of counsel for Plaintiff/Counter-Defendant in the relief sought herein on May 11, 2026, by electronic transmission to Lisa Baker, Esq. (P82555), Aldrich Legal Services, PLLC. Concurrence was not received within the requested response window of 7:30 AM EDT, Tuesday, May 12, 2026, and is therefore deemed denied for purposes of LCR 2.119(B)(2). It is therefore necessary to present this motion.

I. PROCEDURAL BACKGROUND

2. Plaintiff/Counter-Defendant Adrienne Marjorie Rockenhaus filed her Verified Complaint for Divorce in this Court on April 9, 2026.
3. Defendant/Counter-Plaintiff Conrad Alan Rockenhaus filed and served his Answer to Verified Complaint for Divorce, Affirmative Defenses, and Counterclaim ("Counterclaim") on April 15, 2026. Service was effected by First-Class U.S. Mail to counsel of record, Lisa Baker, Esq. (P82555), Aldrich Legal Services, PLLC, at 276 South Union Street, Plymouth, MI 48170. Service was complete on mailing pursuant to MCR 2.107(C)(3).
4. Plaintiff/Counter-Defendant has appeared generally in this matter through Aldrich Legal Services, PLLC. Counsel's appearance covers the Counterclaim under standard Michigan practice.
5. The Counterclaim contains a verified prayer for relief at WHEREFORE Counts A through K, including specific monetary, accounting, property-return, and equitable-distribution items grounded in the factual averments at Paragraphs 24 through 62.

II. PREDICATE FAILURE, COUNTERCLAIM UNANSWERED

6. MCR 2.108(A)(4) provides: "A party served with a pleading stating a cross-claim or counterclaim against that party must serve and file an answer or take other action permitted by law or these rules within 21

days after service."

7. Twenty-one days from April 15, 2026 is May 6, 2026. The rule contains no mailing extension applicable to counterclaim answers.
8. As of the filing of this motion on May 12, 2026, no answer, motion, or other responsive pleading has been served or filed by Plaintiff/Counter-Defendant. The 21-day period prescribed by MCR 2.108(A)(4) expired six days ago.
9. The factual averments of the Counterclaim are therefore deemed admitted by operation of the rule. MCR 2.603(A); see also *Wood v. Detroit Auto. Inter-Ins. Exch.*, 413 Mich. 573, 582 (1982) (default operates as an admission of the well-pleaded allegations of the complaint).

III. DEFAULT PROPERLY ENTERED UNDER MCR 2.603(A)

10. Defendant/Counter-Plaintiff has filed contemporaneously with this Motion a Default Request and Entry on SCAO Form MC 07, requesting clerk's entry of default of Plaintiff/Counter-Defendant on the Counterclaim. The Request is supported by the nonmilitary affidavit required by MCR 2.603(C) and incorporated into the MC 07 form.
11. The clerk's entry of default is a ministerial act required upon proper showing under MCR 2.603(A). The Court may proceed to consideration of this Motion on the assumption that clerk's entry of default has been or will be posted in the ordinary course of business.
12. Defendant/Counter-Plaintiff has filed contemporaneously with this Motion a Notice of Entry of Default on Counterclaim, served on Aldrich Legal Services, PLLC pursuant to MCR 2.603(A)(2).

IV. STANDARD FOR COURT-ENTERED DEFAULT JUDGMENT UNDER MCR 2.603(B)(3)

13. Because Plaintiff/Counter-Defendant has appeared generally through counsel, default judgment in this matter must be entered by the Court on motion, not by the clerk. MCR 2.603(B)(2) is unavailable; MCR 2.603(B)(3) governs.
14. Plaintiff/Counter-Defendant is entitled to notice of this Motion at least seven days before entry of default judgment under MCR 2.603(B)(1)(a) and (b). Service of this Motion on Aldrich Legal Services, PLLC by electronic transmission satisfies that requirement.
15. Where, as here, the Court must "(i) take an account, (ii) determine the amount of damages, (iii) establish the truth of an allegation by evidence, or (iv) investigate any other matter," MCR 2.603(B)(3)(b) authorizes the Court to "conduct hearings or order references it deems necessary and proper" before or in connection with entry of default judgment. Defendant/Counter-Plaintiff seeks default judgment on the items grantable on the deemed-admitted record below in §V, and a damages-hearing referral on the items requiring further development below in §VI.

V. COUNTERCLAIM ITEMS GRANTABLE ON THE DEEMED-ADMITTED RECORD

A. Count B, Accounting of VA and SSDI Funds

16. Counterclaim Paragraphs 27 through 31 establish, on the deemed-admitted record, that Counter-Defendant accessed Counter-Plaintiff's federal disability accounts without authorization and retained funds during periods when Counter-Plaintiff was incarcerated and unable to monitor them. Counter-Defendant's status as SSA-appointed Representative Payee (Counterclaim ¶29) imposed an independent fiduciary duty under 42 U.S.C. § 405(j). The Counterclaim's WHEREFORE Count B requests "a full accounting of all VA Disability Compensation, SSDI benefits, and any other funds received by Counter-Defendant on behalf of Counter-Plaintiff from September 2025 through the present, including all bank statements, transaction records, and account documentation."
17. The accounting relief is equitable and is granted on the deemed-admitted record. The duty is established; the scope of the accounting is reasonable; and the records sought are within Counter-Defendant's exclusive control.

B. Count C (VA Component), Common-Law Conversion of \$26,837.87

18. Counterclaim Paragraphs 27 and 28 plead with documentary specificity that Counter-Defendant accessed Counter-Plaintiff's va.gov account using his id.me credentials without authorization, redirected his direct deposits to accounts under her control, and retained \$26,837.87 in diverted VA Disability Compensation during the period September 2025 through February 2026. Counter-Defendant was not Counter-Plaintiff's VA fiduciary or representative payee at any relevant time; she had no legal authority to access or redirect these funds. The diversions are documented in the VA Payment History attached to the supporting Affidavit, with specific monthly dates, specific amounts ranging from approximately \$4,317 to \$4,764 per month, and specific routing destinations.
19. These deemed-admitted facts establish common-law conversion under Michigan law. "Conversion is any distinct act of dominion wrongfully exerted over another's personal property in denial of or inconsistent with his rights therein." *Aroma Wines & Equipment, Inc. v. Columbia Distribution Services, Inc.*, 497 Mich. 337, 351-352 (2015). Money may be the subject of conversion when it is specific, identifiable, and the defendant has a duty to return the specific money. *Lawsuit Financial, LLC v. Curry*, 261 Mich. App. 579, 591 (2004); *Head v. Phillips Camper Sales & Rental, Inc.*, 234 Mich. App. 94, 111 (1999). Each requirement is satisfied here. The diverted payments are specifically identified by date, amount, and routing destination in the VA Payment History. Counter-Defendant had a duty to immediately return funds to which she had no authorized claim. Counter-Defendant's exercise of dominion (the unauthorized credential-driven redirection of direct deposits to accounts she controlled) was wrongful at every step.
20. No federal-preemption bar applies. The anti-attachment provision at 38 U.S.C. § 5301(a) protects veterans from creditors and from legal process directed at benefits; it does not shield third-party tortfeasors who divert benefits already paid through unauthorized access from civil liability to the veteran. The recovery sought is not an attachment, levy, or seizure of VA-administered benefits, and is not a relitigation of any benefits-administration determination committed to the Secretary's exclusive authority under 38 U.S.C. § 511. It is a state-law tort recovery against a person who, by deemed admission, accessed Counter-Plaintiff's federal credentials without authorization and converted his property. The character of the converted property informs the measure of damages; it does not strip this Court of jurisdiction over a common-law tort claim between two natural persons.
21. The damages on Count C (VA component) are liquidated at \$26,837.87. That figure is documentarily anchored to the VA Payment History and is grantable on default judgment without further evidentiary development. Defendant/Counter-Plaintiff reserves the question of statutory enhancement under MCL 600.2919a (treble damages for conversion) for any subsequent damages-hearing if the Court so directs; the Motion as filed seeks only the actual damages of \$26,837.87.

C. Count D, Return of Personal Property

22. Counterclaim Paragraph 49 itemizes the personal property wrongfully retained by Counter-Defendant: Counter-Plaintiff's wallet and contents (driver's license, VA ID, bank cards); Social Security card; birth certificate; DD Form 214; VA Award Letter; Apple iPhone 16e and charger; Apple iPad and charger; Apple Mac Mini; backpack with clothing; and other personal effects present at 26695 Ross Drive at the time of separation. WHEREFORE Count D requests immediate return of these items.
23. Counter-Defendant has admitted retention of this property by failure to plead. The relief is specific performance and is grantable on default judgment. The cat Autumn, identified in Counterclaim Paragraph 49 as marital property, is reserved for property-division treatment at the Judgment of Divorce stage.

D. Count E, Transfer of Premarital Domains

24. Counterclaim Paragraphs 50 and 37 plead Counter-Plaintiff's premarital separate-property ownership of the internet domains rockenhaus.com (registered in 1999, decades before the May 20, 2023 marriage), skyphusion.com, and greyponyit.com. WHEREFORE Count E requests immediate transfer of these

domains and all associated registrar credentials, DNS settings, and hosting accounts to Counter-Plaintiff's sole control.

25. The premarital character of the domains is admitted on default. The relief is specific performance against premarital separate property and is grantable on default judgment. The Court may direct that, upon failure of Counter-Defendant to effect transfer within a specified period, this Court's order shall serve as the operative direction to the registrars of record to effect transfer without further action by Counter-Defendant.

E. Count F (Accounting Component), Cannabytes, LLC Accounting

26. Counterclaim Paragraphs 51 through 54 plead Counter-Plaintiff's status as a formally designated officer of Cannabytes, LLC (Vice President of Systems Engineering, listed in formation documents), his role as systems engineer and infrastructure manager throughout the marriage, and Counter-Defendant's unilateral exclusion of Counter-Plaintiff from operations and accounts since the filing of the PPO. WHEREFORE Count F requests both a complete accounting of all Cannabytes, LLC revenues, accounts, assets, and liabilities from the date of marriage through the present, and an award of equitable share.
27. The accounting component is granted on the deemed-admitted record. Counter-Plaintiff's officer status, his admitted exclusion from the business, and Counter-Defendant's continued operation are all admitted facts. The accounting is equitable, the scope is reasonable, and the records are within Counter-Defendant's control. The share-component is reserved for a damages-hearing referral as set forth below in §VI.A.

VI. ITEMS REQUIRING DAMAGES-HEARING REFERRAL UNDER MCR 2.603(B)(3)(B)

A. Count F (Share Component), Equitable Share of Cannabytes, LLC

28. The valuation of Counter-Plaintiff's equitable share of Cannabytes, LLC requires "(i) tak[ing] an account" and "(ii) determin[ing] the amount of damages" within the meaning of MCR 2.603(B)(3)(b). Counter-Plaintiff requests that the share-component of Count F be referred to a damages hearing or further proceedings following completion of the Count F accounting ordered above.

B. Count G, Disproportionate Division Under MCL 552.401

29. The disproportionate-division relief sought under Count G, while grounded in the financial-misconduct findings admitted on default, is appropriately resolved at the Judgment of Divorce stage rather than on default judgment in isolation. Counter-Plaintiff requests that the Court's findings on default judgment as to Counter-Defendant's misconduct (Counterclaim Counts III through VII) carry forward as established facts at any subsequent property-division hearing under MCL 552.19 and MCL 552.401.

C. Count H, Sanctions Under MCR 2.114 / MCR 1.109(E)

30. Counterclaim WHEREFORE Count H requests sanctions for the filing of a Verified Complaint containing the knowingly false statement that Counter-Plaintiff's "whereabouts are unknown" while Counter-Defendant simultaneously listed Counter-Plaintiff's phone number and email address in the same filing, and while Counter-Defendant's own actions had caused Counter-Plaintiff's known placement at the Robert J. Delonis Center homeless shelter. The current sanction provision is MCR 1.109(E) (the renumbered successor to MCR 2.114). On the deemed-admitted record, the predicate facts for sanctions are established. Counter-Plaintiff requests referral of sanctions to a separate hearing on amount and form of sanction.

D. Count I, Costs

31. Counter-Plaintiff has incurred filing fees, certified-mail and notary fees, electronic-filing fees, and transportation expenses in connection with this action. An itemized cost bill is filed contemporaneously with this Motion. Counter-Plaintiff requests that the costs identified in the itemized cost bill be awarded as

part of the default judgment, with leave to supplement at any subsequent damages hearing for costs incurred between the date of this Motion and entry of judgment.

VII. ITEMS NOT PURSUED IN THIS MOTION

32. Defendant/Counter-Plaintiff does not seek default-judgment entry on the following items, and reserves them for the indicated treatment:

a. **Count C (SSDI Component), \$12,074.50.** The SSDI-overpayment portion of Count C is reserved for the proper forum and is not pursued in this Motion. The Social Security Administration has issued a formal demand for return of \$12,074.50 in overpayments paid to Counter-Defendant in her capacity as SSA-appointed Representative Payee. The demand letter is addressed to Counter-Defendant directly. The recovery of those overpayments is a federal administrative function under 42 U.S.C. § 405(j) and the implementing regulations; the obligation runs from Counter-Defendant to SSA, not from Counter-Defendant to Counter-Plaintiff. Defendant/Counter-Plaintiff acknowledges the procedural posture and reserves the SSDI recovery for the proper forum without prejudice to the deemed-admitted breach-of-fiduciary-duty findings supporting Count B accounting, Count G disproportionate-division weighting, and Count H sanctions.

b. **Count A (Judgment of Divorce).** The Judgment of Divorce is sought through the merits track of this consolidated action and through the parallel Washtenaw County matter (Case No. 26-737-DO). Counter-Plaintiff does not seek to obtain the decree itself by default.

c. **Count J (PPO Termination).** Termination of the Personal Protection Order in Wayne County Case No. 26-102221-PP is reserved for the PPO court's determination on the termination motions pending in that case. The PPO court has independent jurisdiction over its order, and the relief is more appropriately resolved on the merits there.

d. **Count K (Transfer or Consolidation).** This is a procedural request, not a substantive count, and is partially mooted by the reassignment of this case to Hon. Nicole N. Goodson on April 30, 2026. Counter-Plaintiff reserves the right to renew the consolidation request by separate motion if appropriate.

VIII. PLAINTIFF/COUNTER-DEFENDANT'S PARALLEL PROCEDURAL FAILURES

33. Plaintiff/Counter-Defendant's failure to plead the Counterclaim is consistent with a broader pattern of disengagement from the procedural obligations of this litigation. Plaintiff/Counter-Defendant's Verified Statement on SCAO Form FOC 23, filed with the Verified Complaint pursuant to MCR 3.206(C) on April 9, 2026, is facially incomplete as to her own income. Item 18 (Occupation) is completed as "Self Employed." Item 19 (Business/Employer) is completed as "Cannabytes, LLC." **Item 20 (Gross weekly Income) is left blank.** By contrast, the same form fields completed by Counter-Defendant about Counter-Plaintiff at items 41 and 43 include both an occupation and a specific dollar figure for gross weekly income. The form thus reflects a level of attentiveness to disclosure of the opposing party's income that Counter-Defendant did not extend to disclosure of her own.

34. The Verified Statement is also substantively incomplete. Counter-Defendant did not disclose distributions of approximately \$2,000 per month from a third-party-settled trust established by Counter-Defendant's deceased mother, of which Counter-Defendant is the income beneficiary, and which is ongoing.

35. Neither defect is minor. The trust distributions are recurring monthly income directly relevant to MCR 3.206(C)'s express purpose of disclosing "all sources of income" and to any subsequent property-division and support analysis under MCL 552.401, MCL 552.19, and MCL 552.452. Counter-Plaintiff has direct testimonial knowledge of the trust income source from the marriage and so swears in the supporting Affidavit. The blank gross-weekly-income field at item 20 stands on the docket without need for testimonial supplementation.

36. Counter-Plaintiff brings these Verified Statement defects to this Court's attention not to seek separate relief in this Motion but to inform the Court's exercise of discretion under MCR 2.603(B) and equitable-

division authority under MCL 552.401. The deemed-admitted financial misconduct record (Counterclaim ¶¶27-31), combined with the documented procedural default (failure to plead the Counterclaim), and now the demonstrable Verified Statement defects, together justify entry of default judgment on the items requested above without modification or set-aside relief absent the strong showing required by MCR 2.603(D).

IX. RELIEF REQUESTED

WHEREFORE, Defendant/Counter-Plaintiff Conrad Alan Rockenhaus respectfully requests that this Honorable Court:

- A. ENTER default judgment in favor of Defendant/Counter-Plaintiff on the Counterclaim filed April 15, 2026;
- B. ORDER, on Count B, a full accounting by Plaintiff/Counter-Defendant of all VA Disability Compensation, SSDI benefits, and any other funds received on behalf of Defendant/Counter-Plaintiff from September 2025 through the date of this Order, including all bank statements, transaction records, and account documentation, with production to Defendant/Counter-Plaintiff within 30 days of the Order;
- C. ORDER, on Count C (VA component), payment by Plaintiff/Counter-Defendant to Defendant/Counter-Plaintiff of \$26,837.87 in damages for common-law conversion of funds diverted from Defendant/Counter-Plaintiff's VA Disability Compensation account through Plaintiff/Counter-Defendant's unauthorized access using Defendant/Counter-Plaintiff's id.me credentials, with statutory interest from the date of judgment under MCL 600.6013, and reserve the question of statutory enhancement under MCL 600.2919a for any subsequent damages-hearing if the Court so directs;
- D. ORDER, on Count D, immediate return by Plaintiff/Counter-Defendant of all personal property of Defendant/Counter-Plaintiff itemized in Counterclaim Paragraph 49, with possession to be effected within seven days of the Order, and with the cat Autumn reserved for treatment at the Judgment of Divorce stage as marital property;
- E. ORDER, on Count E, transfer by Plaintiff/Counter-Defendant of all premarital internet domains, including rockenhaus.com, skyphusion.com, and greyponyit.com, and all associated registrar credentials, DNS settings, and hosting accounts, to Defendant/Counter-Plaintiff's sole control within 14 days of the Order, and FURTHER ORDER that, upon failure of Plaintiff/Counter-Defendant to effect such transfer within the specified period, this Court's Order shall serve as the operative direction to the registrars of record (including but not limited to Network Solutions, GoDaddy, and Cloudflare) to effect transfer of the domains without further action by Plaintiff/Counter-Defendant;
- F. ORDER, on Count F (accounting component), a full accounting by Plaintiff/Counter-Defendant of all Cannabytes, LLC revenues, accounts, assets, and liabilities from the date of marriage (May 20, 2023) through the date of this Order, with production to Defendant/Counter-Plaintiff within 30 days of the Order, and REFER, on Count F (share component), the determination of Defendant/Counter-Plaintiff's equitable share of Cannabytes, LLC to a subsequent hearing under MCR 2.603(B)(3)(b)(ii) following completion of the accounting;
- G. RESERVE, on Count G, the disproportionate-division relief under MCL 552.401 for treatment at the Judgment of Divorce stage, with the deemed-admitted misconduct findings on this Motion to carry forward as established facts at that stage;
- H. REFER, on Count H, the request for sanctions under MCR 1.109(E) to a separate hearing on amount and form of sanction;
- I. AWARD, on Count I, the costs identified in the itemized cost bill filed contemporaneously, with leave to supplement at any subsequent damages hearing for costs incurred between the date of this Motion and entry of judgment;
- J. ORDER such other and further relief as this Court deems just and equitable.

Respectfully submitted,
/s/ Conrad A. Rockenhaus
Conrad Alan Rockenhaus
Defendant/Counter-Plaintiff Pro Se
1690 Brookfield Drive
Ann Arbor, MI 48103
(254) 340-7910
conrad@rockenhaus.net
Date: May 12, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, Defendant/Counter-Plaintiff appearing pro se, hereby certify that on May 12, 2026, I served a true and correct copy of the foregoing Defendant/Counter-Plaintiff's Motion for Default Judgment on Counterclaim, together with the supporting Affidavit, Itemized Cost Bill, Notice of Entry of Default on Counterclaim, SCAO Form MC 07, and Proposed Order, upon counsel of record for Plaintiff/Counter-Defendant by two independent modes: (i) electronic transmission pursuant to MCR 2.107(G) to the electronic mail addresses listed below, and (ii) First Class U.S. Mail to the firm's office of record as a courtesy.

Service by Electronic Transmission:

- Lisa Baker, Esq. (P82555), Aldrich Legal Services, PLLC, at lisabaker@aldrichlegalservices.com (counsel of record for Plaintiff/Counter-Defendant)
- Kristen Sinkiewicz, Paralegal, Aldrich Legal Services, PLLC, at kris@aldrichlegalservices.com (carbon copy, paralegal at firm of record)

Service by First Class U.S. Mail (Courtesy Copy):

- Aldrich Legal Services, PLLC, Attn: Lisa Baker, Esq. (P82555), 276 South Union Street, Plymouth, MI 48170 (counsel of record for Plaintiff/Counter-Defendant)

Aldrich Legal Services, PLLC remains counsel of record for Plaintiff/Counter-Defendant in this matter, and its appearance has not been withdrawn as of the date of this Certificate of Service. Service on counsel of record is proper under MCR 2.107(B)(1). Service by First Class U.S. Mail is complete on mailing under MCR 2.107(C)(3).

I declare under the penalties of perjury that this Certificate of Service has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Dated: May 12, 2026

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

Defendant/Counter-Plaintiff Pro Se

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